

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

IN THE MATTER OF THE MOTION OF Maria-Alejandra O'Shaughnessy-Whitfield, MOVANT

Case number of the case this motion addresses (copy it exactly from the court record):

.....

Motion case number: (the Seal Team assigns it at filing)

MOTION TO SEAL A CONVICTION RECORD UNDER D.C. CODE Sec. 16-806(a)(3)

1. The movant, Maria-Alejandra O'Shaughnessy-Whitfield, date of birth 1968-12-31, moves this Court under D.C. Code Sec. 16-806(a)(3) to seal the record of the conviction identified in the caption above.

2. This motion concerns a misdemeanor conviction, for which D.C. Code Sec. 16-806(a)(3) sets a waiting period of five years from completion of the sentence. Under D.C. Code Sec. 16-801(2), completion of the sentence is unconditional discharge from incarceration, commitment, probation, parole, or supervised release, whichever is latest, and nonpayment of fines, restitution, or other monetary assessments does not prevent completion. The movant states the case facts from the court record:

Offence of conviction, worded exactly as the court record words it:

.....

Statute section of the offence of conviction, copied from the court record:

.....

Date the movant completed the sentence - the latest of discharge from incarceration, commitment, probation, parole or supervised release:

.....

3. As D.C. Code Sec. 16-806(c)(1) requires, the movant states every citation, arrest, charge and conviction of the movant that has not already been sealed or expunged, as reasonably known to the movant (add pages if needed; write NONE OTHER if there are none):

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4. The records the movant asks the Court to seal are the following (D.C. Code Sec. 16-806(h): the movant need not seek relief for every eligible record):

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5. Sealing is in the interests of justice. In weighing this motion the Court considers the movant's interest in sealing, the community's interest in the movant's rehabilitation and reintegration, and the community's

interest in retaining access to the record. The movant's own statement of why sealing this record is in the interests of justice, in the movant's own words (state only facts; this packet writes none of these lines for you):

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6. Prior sealing motions the movant has filed under this chapter, and when each was resolved (write NONE if none):

.....

7. The waiting period stated above has run since completion of the sentence. The movant therefore asks the Court to seal the records relating to the conviction identified above, pursuant to D.C. Code Sec. 16-806.

NOTE PRINTED FOR THE MOVANT, FROM THE RECORDED RULE: if the waiting period has not yet run, only the prosecutor's written waiver under D.C. Code Sec. 16-806(e) can shorten it. Needing that waiver is a stop-and-get-help situation, not a blank to fill.

DATE SIGNATURE OF MOVANT

(The movant signs and dates this motion personally. Nothing on this page is signed or dated for the movant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 4501 Benning Ridge Crossing Road SE, Apartment 14B, Washington, District of Columbia 20019-2214

TELEPHONE: (202) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:DC:dc_seal_conviction:dc_motion_seal_misdemeanor_conviction_5yr_16_806

COPY FOR THE PROSECUTING OFFICE

Enclosed is a copy of the motion filed by Maria-Alejandra O'Shaughnessy-Whitfield under D.C. Code Sec. 16-806(a)(3): MOTION TO SEAL A CONVICTION RECORD UNDER D.C. CODE Sec. 16-806(a)(3).

Under the recorded rule for this motion, the motion is served on the prosecutor, and the prosecutor need not respond unless the Court orders it. Do not expect an opposition by default.

WHICH OFFICE, AND WHERE, IS NOT STATED HERE. Two offices prosecute District of Columbia cases - the United States Attorney's Office for the District of Columbia and the Office of the Attorney General for the District of Columbia - and no source this packet is built from states the rule for which office prosecuted a given case or its correct service address. A guessed recipient in a service instruction is worse than none. Before you serve this copy, ask the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov which office prosecuted your case and the correct service address, and use exactly what they tell you.

NAME AND MAILING ADDRESS OF THE PROSECUTING OFFICE FOR THE CASE
(you write it here before service; the Criminal Division clerk's office can confirm it)

.....
.....

DATE OF SERVICE OF THE COPY
SIGNATURE OF MOVANT

This page is not proof of service and does not say that anything has been served. It is completed and signed by the movant when the copy actually goes out, in the manner the clerk directs. A date or a signature written before the copy goes out would be false.

Route:

obligation:track-pathway:DC:dc_seal_conviction:dc_motion_seal_misdemeanor_conviction_5yr_16_806

FILING INSTRUCTIONS

This packet is prepared for sealing a District of Columbia conviction record by motion under D.C. Code Sec. 16-806(a)(3).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT YOU DO, IN ORDER (steps one, two and five are stated by the Criminal Division's own instruction sheet, Rev. April 10, 2024, verified byte-exact for this packet):

STEP ONE. Call (202) 727-4245 to make an appointment with the Metropolitan Police Department (MPD) to request a copy of your arrest history report.

STEP TWO. Request the disposition of your case from DC Superior Court: email criminalcustomerservice@dcsc.gov, or ask in person at the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC, between 8:30 a.m. and 5:00 p.m.

STEP THREE. Fill in every dotted blank in this packet from those records. Do not guess a date, a charge wording or a case number.

STEP FOUR. Sign and date the motion yourself. The platform never signs for you and never dates a signature.

STEP FIVE. Send all your documents - your arrest record, your case disposition, and the motion - to criminalmotionsealteam@dcsc.gov. The Seal Team gives the motion a case number and assigns it to a judge to decide. The instruction sheet states this process can take up to six months. Whether any other filing channel is available is not stated by any held source; ask the clerk's office if email will not work for you.

STEP SIX. Serve a copy of the motion on the prosecuting office, using the service page in this packet, after asking the clerk which office prosecuted your case and its correct service address. The prosecutor need not respond unless the Court orders it.

MONEY. No source this packet is built from states a filing fee, that filing is free, or a fee-waiver procedure for this motion. Before filing, ask the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov whether any fee applies and, if you cannot pay it, how to ask for a waiver.

ONE MOTION PER CASE NUMBER. File one motion per case number in the case being addressed.

REPEAT MOTIONS. After a denial, the Court entertains a second motion no sooner than one year after the first is resolved, and a third and final motion no sooner than one year after the second.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- the prosecutor files an opposition or the court orders a response;
- the court sets a hearing;
- a victim submits a statement;
- the felony Offense Severity Group cannot be established from the record;
- the case has co-defendants and redaction is at issue;

- the record is federal, military, tribal, or from another jurisdiction;
- you are asking to attack the conviction rather than seal it;
- you need the prosecutor to waive a waiting period in writing;
- a prior motion was denied inside the one-year window, or you are at the third and final motion;
- immigration, firearm, licensing, security clearance, childcare, healthcare, or law enforcement employment consequences are in play.

THESE ORGANIZATIONS CAN HELP (named, with numbers, on the Criminal Division's own instruction sheet):

- Christian Legal Society - 202-710-0592
- Legal Aid DC - 202-628-1161
- Neighborhood Legal Services Program - 202-832-6577
- Public Defender Service (ask for the Duty Day Attorney for Seal cases) - 202-824-2801
- Rising for Justice - 202-638-4798

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleading and process pages. No official court form exists for this motion - the statute fixes the motion's content, which is why these pages are composed - and this packet is not legal advice, it is not filed for you, and it does not decide whether the Court will grant relief. Expunging destroys a record; sealing hides it from public view.

Route:

obligation:track-pathway:DC:dc_seal_conviction:dc_motion_seal_misdemeanor_conviction_5yr_16_806